

As Redding Municipal Code §§ 13.40.040 and 13.40.050 are the only statutes listed in the First Amended Complaint, listing Gov. Code § 815.6 is improper and Gov. Code 815.6 shall be stricken.

As the parties agree, and the Court concurs, that attorney fees should be stricken, the Court will order the prayer for attorney fees stricken without analysis.

The Motion to Strike is **GRANTED**. Gov. Code § 815.6 and the prayer for attorney fees shall be stricken from the First Amended Complaint. The Court notes that Plaintiff requested leave to amend but did not provide how any amendment could cure the defect. Unless Plaintiff appears at the hearing and provides how the defect can be cured, leave to amend will not be granted. Defendant submitted a proposed Order that will be modified to reflect the Court's ruling.

IN RE: MASSEY, III

Case Number: 25CV-0207125

Proposed Tentative Ruling on Petition for Change of Name: Petitioner William James Massey, III seeks to change his name to William James Sebree. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied, with the exception that proof of publication has not been filed. The Court intends to grant the Petition upon presentation of sufficient proof of publication. **An appearance is necessary on today's calendar.**

NELLA SEMAJ FOUNDATION, INC VS. ONE THOUSAND AND NINE, LLC

Case Number: 24CV-0205646

Tentative Ruling on Demurrer: This matter arises out of foreclosure on 18300 Antler School Road, Lakehead, CA 96051 ("Property"). Plaintiff Nella Semaj Foundation, Inc.'s Complaint alleges five causes of action for: 1. Negligence, 2. Violation of Civ. Code § 2923, et seq., 3. Violation of Business and Professions Code § 17200, et seq., 4. Wrongful Foreclosure, and 5. Declaratory Relief. Defendant One Thousand and Nine, LLC demurs to each cause of action on the grounds that they do not state facts sufficient to constitute a cause of action against them, and for uncertainty, pursuant to CCP § 430.10.

Judicial Notice: Pursuant to Evidence Code § 452, Defendant requests the Court take judicial notice of four documents relating to the Property which were recorded with the Shasta County Recorder's Office. The documents are: 1. Deed of Trust recorded July 26, 2023, 2. Notice of Default and Election to Sell Under Deed of Trust, recorded February 22, 2024, 3. Notice of Trustee's Sale recorded May 28, 2024, 5. Trustee's Deed Upon Sale recorded June 25, 2024. Plaintiff objects to the requests for judicial notice, arguing that the Court cannot accept facts contained in the judicially noticed documents as true.

Courts may notice official acts and public records, but may not take judicial notice of the truth of all matters stated therein. *Ragland v. U.S. Bank Nat'l Assn.* (2012) 209 Cal. App. 4th 182, 194 (internal citations omitted). The taking of judicial notice of the official acts of a governmental entity does not in and of itself require the acceptance of the truth of factual matters which might be deduced therefrom, since in many instances what is being noticed, and thereby established, is no more than the existence of such acts and not, without supporting evidence, what might factually be associated with or flow therefrom." *Ibid*. The exception is the grant deed; a recorded deed is an official act of the executive branch, of which courts may take judicial notice. *Ibid*. However, as the Court in *Herrera v. Deutsche Bank Nat'l Tr. Co.* (2011) 196 Cal. App. 4th 1366, 1375, explained in the context of a residential mortgage foreclosure litigation, the truth of the factual matters stated within a recorded deed, or similar document, are hearsay and cannot be considered not reasonably subject to dispute.

Here, Defendant argues that the Court may take judicial notice of the facts stated in the recorded deed regarding compliance with notice requirements, pursuant to Civ. Code § 2924(c), which provides that recitals in the deed of compliance with all requirements constitutes prima facie evidence of compliance and conclusive evidence thereof in favor of bona fide purchasers. Despite the presumption, the factual matters regarding notice may still

be reasonably subject to dispute. The Court GRANTS Defendant's request for judicial notice of the existence of each of the documents listed above, but does not accept the truth of the matters stated therein.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Brianna Milligan satisfies this requirement.

Merits: A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). A demurrer should also be sustained if the pleading is uncertain, meaning that the pleading is ambiguous or unintelligible. CCP § 430.10(f). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App.4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.

First Cause of Action: Negligence. To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries. [Citation.] Whether a duty of care exists is a question of law to be determined on a case-by-case basis. [Citation.] [¶] We start by identifying the allegedly negligent conduct by [defendants] because our analysis is limited to 'the specific action the plaintiff claims the particular [defendant] had a duty to undertake in the particular case.' *Alvarez v. BAC Home Loans Servicing, L.P.* (2014) 228 Cal. App. 4th 941, 944, disapproved of by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905. Defendant argues that as a private money lender, it had no duty of care to Plaintiff. "As a general rule, a financial institution owes no duty of care to a borrower when the institution's involvement in the loan transaction does not exceed the scope of its conventional role as a mere lender of money." *Nymark v. Heart Fed. Sav. & Loan Assn.* (1991) 231 Cal. App. 3d 1089, 1096. Here, Plaintiff's Complaint does not plead any facts regarding Defendant exceeding the scope of its conventional role as a mere lender of money such that a duty of care was owed. Plaintiff urges the Court to apply the factors set forth in *Biakanja v. Irving* (1958) 49 Cal.2d 647 to establish a duty of care in this case. However, the California Supreme Court has clearly opined in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905, 922: "Those factors are commonly employed to ascertain whether a court should recognize a duty, but are useful and appropriate for that purpose only in situations involving parties that are *not* in privity with one another." Plaintiff's Complaint alleges the parties were in privity, as Plaintiff purchased the subject property from Defendant, and Defendant agreed to a seller-finance arrangement and carried a note in the amount of \$595,000. Plaintiff has not stated facts sufficient to constitute a cause of action for negligence. The demurrer to the first cause of action is SUSTAINED with leave to amend.

Second Cause of Action: Violation of Civil Code 2924. Plaintiff alleges Defendant violated this code section by failing to provide notice of the Notice of Default, Notice of Trustee's Sale, or otherwise proceeding with foreclosure without properly notifying the property owner. Defendant argues that Civ. Code § 2924(c), and the existence of a Trustee's Deed Upon Sale effectively bars this cause of action due to the evidentiary presumption. But Plaintiff here has adequately pleaded that Plaintiff received no notice of the acceleration or recordings. As discussed above with respect to judicial notice, whether proper notice was actually given is a fact reasonably subject to dispute. The cause of action is adequately pled. The demurrer to the second cause of action is OVERRULED.

Third Cause of Action: Violation of Bus. & Prof. Code § 17200, et seq. These code sections, also known as California's Unfair Competition Law ("UCL"), prohibit any unlawful, unfair, or fraudulent business act or

practice. Each “prong,” i.e. unlawful, unfair, or fraudulent, is its own independent ground for liability under the unfair competition law. *Long Beach Mem'l Med. Ctr. v. Kaiser Found. Health Plan, Inc.* (2021) 71 Cal.App.5th 323, 342. A plaintiff states a claim under the unlawful prong of the unfair competition law by showing that the challenged practice violates a California statute or regulation. *Ibid.* A plaintiff states a claim under the unfair prong of the unfair competition law by showing the “defendant's ‘conduct is tethered to an underlying constitutional, statutory or regulatory provision, or that it threatens an incipient violation of an antitrust law, or violates the policy or spirit of an antitrust law.’ ” [Citations.] *Graham v. Bank of Am., N.A.* (2014) 226 Cal.App.4th 594, 613, 172 Cal. Rptr. 3d 218, 233–34 (2014). A plaintiff states a claim under the fraudulent prong of the unfair competition law by demonstrating that “ ‘members of the public are likely to be deceived.’ ” [Citations.]” (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 211.) The Second Appellate District of the Court of Appeal has held that “the reasonable consumer standard” applies to actions involving claims under the CLRA and the UCL for unfair or deceptive business practices. *Aron v. U-Haul Co. of California* (2006) 143 Cal. App. 4th 796, 806.

Plaintiff alleges Defendants violated the UCL by failing to ensure appropriate safeguards are put into place prior to the pending foreclosure. Plaintiff further alleges that Plaintiff was provided with no notice of the foreclosure and lost the property. Defendant argues that this cause of action hinges on the success of Plaintiff's cause of action for violation of Civil Code 2924, et seq. and for wrongful foreclosure, as it is a derivative claim. The Court has found the second cause of action is adequately pled. The derivative UCL claim is also adequately pled. The demurrer to the Third Cause of Action is **OVERRULED**.

Fourth Cause of Action: Wrongful Foreclosure. The elements of a tort cause of action for wrongful foreclosure are: 1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; 2) the party attacking the sale was prejudiced or harmed, and 3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering. *Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 408. Plaintiff alleges the foreclosure was wrongful because Civ. Code 2924 barred defendant from foreclosing without adhering to the notice requirements. Defendant argues that there is a TDUS recorded against the property which is presumptive evidence of notice. As discussed above, whether actual notice was given is a fact reasonably subject to dispute.

Defendant further argues that the Complaint fails to allege Plaintiff tendered the indebtedness or was excused from tendering. Recognized exceptions to the tender rule include when: (1) the underlying debt is void, (2) the foreclosure sale or trustee's deed is void on its face, (3) a counterclaim offsets the amount due, (4) specific circumstances make it inequitable to enforce the debt against the party challenging the sale, or (5) the foreclosure sale has not yet occurred. *Chavez v. Indymac Mortg. Servs.* (2013) 219 Cal. App. 4th 1052, 1062. Although Plaintiff's Opposition argues for excuse from tender, the Complaint does not plead either that Plaintiff tendered the indebtedness or was excused from tendering. For that reason, the third element of wrongful foreclosure is not adequately pled. The demurrer to the Fourth Cause of Action is **SUSTAINED** with leave to amend.

Fifth Cause of Action: Declaratory Relief. “To qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations.’ ” *Jolley v. Chase Home Fin., LLC* (2013) 213 Cal. App. 4th 872, 909. Defendant argues that this cause of action fails because it is wholly derivative of other claims. Plaintiff argues the claim stands alone as Plaintiff seeks to enforce their right to quiet enjoyment of his property. Defendant counters that Plaintiff is not seeking to set aside the foreclosure sale or for quiet title. The Complaint identifies the actual controversy as all parties herein alleging to have an interest in the property. (Complaint ¶ 43.) The Complaint states that Plaintiff is seeking a judicial determination concerning the relative rights, responsibilities, obligations and interest as to each of the parties hereto with respect to the subject property. (Complaint ¶ 44.) However, the prayer does not include a request for set aside of the foreclosure sale or for quiet

title. The prayer does include “specific performance of the breached contract alleged,” however, no contract is alleged. The Complaint is uncertain in this respect, so the cause of action is not adequately pled. The demurrer to the Fifth Cause of Action is SUSTAINED with leave to amend.

Defendant’s Demurrer to the Complaint is sustained in part and overruled in part as detailed above. A proposed order was lodged but is inadequate. Defendant filed the instant Demurrer as well as a separate Motion to Strike, but submitted only one combined order. Defendant is ordered to submit a stand-alone proposed order on the Demurrer consistent with the Court’s ruling. For those causes of action for which leave to amend was granted, Plaintiff will have 10 days to amend running from notice of entry of order.

Tentative Ruling on Motion to Strike: This matter arises out of foreclosure on 18300 Antler School Road, Lakehead, CA 96051 (“Property”). Plaintiff Nella Semaj Foundation, Inc.’s Complaint alleges five causes of action for: 1. Negligence, 2. Violation of Civ. Code § 2923, et seq., 3. Violation of Business and Professions Code § 17200, et seq., 4. Wrongful Foreclosure, and 5. Declaratory Relief. Defendant One Thousand and Nine, LLC moves to strike portions of the Complaint relating to damages. The Motion to Strike was properly noticed, and is unopposed.

Meet and Confer: Before filing a motion to strike a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Brianna Milligan satisfies this requirement.

Merits: A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal.App.3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b).

Defendant moves to strike portions of Plaintiff’s Complaint as follows:

1. Emotional distress damages on Negligence claim in paragraph 53.
2. Emotional distress damages on 17200 claim in paragraph 62.
3. Treble damages in Prayer, paragraph 5.
4. Punitive damages in Prayer, paragraph 7.

Defendant moves to strike these portions of the Complaint on the grounds that these requested awards are not legally recoverable. The allegations of Plaintiff’s Complaint do not support damages for emotional distress, treble damages, or punitive damages. The Motion to Strike is GRANTED in its entirety. A proposed order was lodged but is inadequate. Defendant is ordered to submit a stand-alone proposed order on the Motion to Strike consistent with the Court’s ruling.

O2 STAFFING, INC. VS. AHRENS, ET AL.

Case Number: 24CV-0205621

Tentative Ruling on Motion to Set Aside Default: Defendant Farzad Sabet moves to set aside the default entered on December 26, 2024. Plaintiff O2 Staffing, Inc. does not oppose setting aside the default, however, Plaintiff seeks reimbursement of the fees and costs associated with the default.

(b) The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding